

My Tidy Garden Franchise Agreement

Vision and Ethos: *My Tidy Garden* is built on a vision of mutual success and shared growth. We believe that when our franchisees thrive, we as a company thrive as well. The foundation of this franchise is a partnership where both Franchisor and Franchisee support each other for our collective success. We leverage modern technology, smart marketing, and a collaborative community spirit to make running a garden maintenance business easier and more rewarding.

Our core values are simple: **We care, we're honest, we communicate.** By caring for our customers' needs, being honest in our dealings, and keeping clear communication, we build trust and long-lasting relationships. This Agreement reflects that spirit of cooperation. It outlines the commitments on both sides to ensure that you, the Franchisee, can grow a successful business with the full backing and support of the Franchisor.

This Franchise Agreement is made and entered into on [Date], by and between:

Franchisor:

MY LOCAL PRO LTD, a company registered in England under company number **16375757**, with its registered office at *3rd Floor, 86-90 Paul Street, London, England, United Kingdom, EC2A 4NE*, trading as **"My Tidy Garden"** (hereinafter referred to as the **"Franchisor"**),

Franchisee:

[FRANCHISEE NAME], residing at [FRANCHISEE ADDRESS] (hereinafter referred to as the **"Franchisee"**).

The Franchisor and the Franchisee may be referred to individually as a **"Party"** and collectively as the **"Parties."**

WHEREAS, the Franchisor is the owner of the *"My Tidy Garden"* trademarks, brand, and business system, which includes proprietary techniques, marketing methods, software, and operational guidelines for providing gardening services (the "System");

WHEREAS, the Franchisor has developed a tech-driven and marketing-focused approach to garden maintenance services, resulting in a strong brand presence, high online rankings, and an efficient System that simplifies business ownership for franchisees;

WHEREAS, the Franchisee wishes to operate a *"My Tidy Garden"* franchise and is willing to use the Franchisor's System and uphold the *My Tidy Garden* brand and values in the Franchisee's own business;

Now, therefore, in consideration of the mutual promises contained herein, the Parties agree as follows:

Definitions

For purposes of this Agreement, the following definitions apply:

- **“Franchise Business”**: The business of providing gardening, lawn care, and related services under the My Tidy Garden brand, in accordance with this Agreement.
- **“Territory”**: The exclusive geographic area assigned to the Franchisee, as described in **Schedule 1**. The Franchisor shall not appoint another franchisee or operate a company-owned My Tidy Garden outlet in that Territory during the Term, so long as the Franchisee complies with this Agreement.
- **“Franchise Fee” or “Monthly Fee”**: The fixed monthly sum the Franchisee pays to the Franchisor for the rights and support granted, as set out in Section 2.
- **“Initial Term”**: The first three (3) years of this Agreement from its Commencement Date, subject to earlier termination as provided herein.
- **“Renewal Term”**: Any subsequent five (5)-year renewal period after the Initial Term, as further described in Section 5.
- **“Commencement Date”** (or “Effective Date”): The date both parties sign this Agreement, unless otherwise specified in the signature blocks.
- **“Customers”**: Any clients or customers who purchase or receive services from the Franchise Business, excluding “Existing Customers of the Franchisee” that were serviced prior to signing.
- **“Existing Customers of the Franchisee”**: Any customers the Franchisee independently served prior to this Agreement, disclosed in writing to the Franchisor at commencement. These are excluded from customer ownership rules applicable to new customers acquired under this Agreement.
- **“Confidential Information”**: All proprietary or secret information relating to the Franchisor’s business, the My Tidy Garden system, brand, manuals, methods, software, pricing, marketing strategies, and any other non-public information disclosed to the Franchisee.
- **“Intellectual Property”**: All trademarks, trade names, logos, service marks, designs, copyrights, software, and other IP rights owned/licensed by the Franchisor, including the My Tidy Garden brand, name, and app.

Any capitalized terms not defined here are defined in the body of this Agreement.

1. Grant of Franchise

1.1 Franchise Rights

The Franchisor grants to the Franchisee, and the Franchisee accepts, a **non-exclusive license** (exclusive only within the specified Territory) to establish and operate a My Tidy Garden franchise business. The Franchisee may hold itself out to the public as an authorized My Tidy Garden franchisee, using the name, logos, and proprietary System strictly as permitted by this Agreement.

1.2 Territory

The Franchisee receives an **exclusive Territory** described in **Schedule 1**. The Franchisor will not appoint another My Tidy Garden franchise, nor operate a company-owned outlet in that Territory for the duration of the Term, provided the Franchisee remains in compliance. The Franchisee agrees **not** to market outside its Territory unless it is (a) handling a referral from the Franchisor or another franchisee, or (b) has prior written consent from the Franchisor. If a customer from outside the Territory requests service, the Franchisee shall coordinate with the Franchisor to avoid conflicts with other franchisees.

1.2.1 Grant of Exclusive Territory

The Franchisor grants to the Franchisee the exclusive right and license to operate the Franchise Business within the Territory. The Territory assigned to the Franchisee is Winton, Bournemouth, the postcode districts BH1, BH2, BH3, BH4, BH8, BH9, BH10]. The Franchisor shall not establish or license another "My Tidy Garden" franchise to operate within the Territory, nor operate a company-owned "My Tidy Garden" outlet or business in the Territory, for as long as this Agreement is in effect.

1.2.2 Territorial Rights and First Refusal

The Franchisee shall have the right of first refusal to provide services to any potential customer residing in, or whose request for service originates from, within the Territory. If the Franchisor receives any enquiry or lead from a prospective customer in the Territory (including through the Franchisor's website, call centre, or any marketing channels), the Franchisor will refer that enquiry to the Franchisee. The Franchisee shall promptly respond to such referrals. If the Franchisee declines the opportunity or fails to accept or respond to the enquiry within a reasonable time (e.g., within 24–48 hours), the Franchisor reserves the right to service that enquiry through alternative means (which may include assigning it to another franchisee or servicing it directly) to ensure the customer is served.

1.2.3 Franchisee's Obligations in Territory

The Franchisee shall focus its business development and service efforts within the Territory. The Franchisee should not actively market or solicit customers outside the Territory without the Franchisor's consent. However, the Franchisee may service customers outside the Territory if:

- (a) the services are a result of a referral by the Franchisor or another franchisee (e.g., if an adjacent territory's franchisee is unable to take on a customer and both parties agree to the arrangement), or
- (b) with prior written consent of the Franchisor for special cases.

Such servicing of customers outside the Territory shall not infringe another franchisee's rights.

1.2.4 Territory Adjustments

The Franchisor shall have the right to alter or subdivide the Territory only with the Franchisee's consent, or if such alteration is mutually agreed due to changes in market conditions or if the Franchisee requests an expansion. Any change to the Territory (e.g., an expansion to include additional postcodes or a restructuring) shall be documented in writing as an amendment to this Agreement. The Franchisee shall have the first option to expand into any adjacent areas that become available for franchising by the Franchisor, subject to meeting the Franchisor's performance criteria and signing the necessary agreement addendum or new franchise agreement for that area.

1.2.5 No Reservation of Rights

Except as expressly provided in this Agreement, all rights not granted to the Franchisee in the Territory are reserved by the Franchisor. The Franchisor retains the right to solicit and service national or regional accounts that may cover multiple territories, including the Territory (for example, contracts with chain businesses or local authorities), provided that if such work is to be carried out within the Territory, the Franchisee shall be given the opportunity to fulfil the services for the portion of work within the Territory on terms to be agreed (which shall be consistent with the terms offered to other franchisees for similar work).

1.3 Term

The Term of this Agreement ("Initial Term") shall be three (3) years from the Commencement Date, unless terminated earlier in accordance with Section 9 (Termination). Notwithstanding Clause 5.1, references in Clause 1.4 to notices and procedures for renewal shall align with the requirements set out in Section 5.2.

1.4 Renewal

At the end of the Initial Term, the Franchisee may renew for an additional five (5) year period ("Renewal Term"), provided:

1. The Franchisee is not in material breach of this Agreement.
2. The Franchisee has paid all amounts due and complied with performance standards.
3. The Franchisee gives written notice of its intention to renew at least **180 days** prior to the end of the Initial Term (or such shorter period as the Franchisor may in its discretion permit).
4. The Franchisee signs the then-current form of My Tidy Garden franchise agreement (no new initial franchise fee unless otherwise specified).

Subsequent renewals may continue in additional five (5) year increments on the same conditions, unless either Party provides timely notice of non-renewal in accordance with Section 5.2.

2. Fees

2.1 Initial Fee (If Applicable)

If agreed, the Franchisee shall pay to the Franchisor an Initial Franchise Fee of £0, payable upon signing this Agreement. This fee covers onboarding, initial training, and the grant of the licence to operate the Franchise Business for the Initial Term. The Initial Fee is non-refundable once paid, except as required by law or explicitly stated herein.

2.2 Monthly Franchise Fee

Throughout the Term, the Franchisee shall pay a fixed Monthly Franchise Fee of £250 to the Franchisor. This fee is in consideration of the right to operate the Franchise Business under the "My Tidy Garden" brand and covers ongoing support and shared network overheads such as marketing, technology platforms, and administrative services. The Franchisee retains all remaining revenue; the Franchisor does not take a percentage of the Franchisee's sales or profits.

2.3 Payment Terms

- The Monthly Fee shall be due and payable in advance on the 1st day of each month (or on another agreed schedule in writing).
- The Franchisee shall set up a direct debit, standing order, or other automatic payment method to ensure timely payment.
- If this Agreement begins mid-month, the Franchisee shall pay a prorated fee for that first partial month.

2.4 Fee Adjustments

Annual Inflation Adjustment:

The Monthly Franchise Fee shall increase annually, on each anniversary of the Commencement Date, in line with the UK inflation rate. The increase shall be calculated using a recognised index (e.g. CPI or RPI), and the Franchisor shall give at least 30 days' written notice of the revised fee.

Additional Helpers:

The Monthly Fee is based on a single-owner-operator model. If the Franchisee hires any employee or helper (full-time or part-time), the Franchisee shall promptly notify the Franchisor. An additional fee of approximately £100/month per helper shall apply, subject to annual inflation adjustment. This reflects increased support needs and revenue potential of a larger operation.

Five-Year Fee Review:

The base Monthly Fee will be reviewed every five years. This review will consider inflation, market conditions, and the Franchisor's costs. Any adjustment beyond the standard inflation increase must be agreed in writing. If the parties cannot agree, the current (inflation-adjusted) fee continues until resolution or the next review period, unless the Agreement is earlier terminated.

2.5 Late Payment & Interest

All fees must be paid on time. If any amount remains unpaid 14 days after the due date, the Franchisor may charge interest at a rate not exceeding 4% per annum above the Bank of England base rate, from the date the payment was due until paid. Persistent failure to pay on time shall constitute a material breach of this Agreement.

3. Training and Support Obligations of the Franchisor

3.1 Initial Training. The Franchisor will provide an initial training programme to the Franchisee (and the Franchisee's key staff, if applicable) prior to or shortly after the opening of the Franchise Business. This training will cover the use of the Franchisor's System, service techniques, customer service standards, use of the technology platforms, marketing strategies, and administrative procedures needed to operate a *My Tidy Garden* franchise successfully. The Franchisee (and any required staff) must attend and complete the training to the Franchisor's reasonable satisfaction before commencing full operations. The Franchisor will not unreasonably withhold certification of the Franchisee's completion of training.

Initial Training Programme: The Franchisor shall provide the Franchisee with an initial training programme prior to or at the commencement of operations. This programme will consist of comprehensive training in two parts:

- **Field Training:** At least **4 days of hands-on training** in the field, working alongside existing experienced My Tidy Garden franchisees or trainers. During this period, the Franchisee (and any key personnel of the Franchisee) will learn practical gardening service techniques, customer interaction, job scheduling, and on-site procedures by shadowing and assisting in actual service visits.
- **Systems and Business Training:** An additional **4 days of training** focused on the business and administrative aspects of running the Franchise Business. This will include training on using the **My Tidy Garden field app** for scheduling jobs, managing customer information, generating quotes, and issuing invoices. It will also cover how to prepare quotes and estimates, manage billing and payments, and essential business planning skills. The Franchisee will be guided through developing a basic business plan, setting financial and operational goals, and understanding how to measure performance.

3.2 Ongoing Support. Throughout the Term, the Franchisor shall provide ongoing support to the Franchisee. This includes reasonable telephone and email support, periodic in-person meetings or virtual check-ins, and access to a franchise support manager who will act as the Franchisee's primary point of contact for questions or issues. The Franchisor will also supply the Franchisee with an operations manual or online knowledge base (the "Operations Manual") which details standard operating procedures, recommended practices, and guidelines for running the Franchise Business. The Operations Manual may be updated from time to time to reflect improvements or changes in the System, and the Franchisee is expected to stay up to date with and adhere to its contents.

- **Advice and Consultation:** The Franchisor (or its support staff) will be available for consultation and advice on operational issues, marketing strategies, customer service concerns, and business decisions. The Franchisee can seek guidance on purchasing tools or equipment, pricing services, hiring practices, and other business matters. While the Franchisee is responsible for purchasing its own tools and equipment, the Franchisor can assist by recommending suppliers or specifications to ensure quality and efficiency.
- **Regular Mentorship Meetings:** The Franchisor will conduct regular mentorship and coaching sessions with the Franchisee. For the first three months of operations, the Franchisor will hold **weekly Zoom (or equivalent video conference) meetings** with the Franchisee to review progress, address challenges, share tips, and reinforce the My Tidy Garden system processes. After the initial three-month period, the Franchisee will have **monthly support calls or meetings** with the Franchisor (or a field support representative) for the remainder of the franchise term, to provide ongoing mentorship, evaluate performance, and offer advice for continuous improvement.
- **Technical Support:** The Franchisor will provide reasonable technical support for the My Tidy Garden app and any other software or systems provided to the Franchisee. This includes initial setup assistance, troubleshooting, and updates or improvements to the

software. Support will typically be available during normal business hours via phone or email.

- **Marketing and Branding Support:** The Franchisor will include the Franchisee in national or regional marketing campaigns, online advertising, and the My Tidy Garden website (as detailed in Section 9). The Franchisor will also provide templates or materials for local marketing (flyers, social media content guidelines, etc.) and guidance on how to effectively promote the business in the Territory.

3.3 Marketing and Lead Generation. The Franchisor will manage national and regional marketing campaigns aimed at promoting the *My Tidy Garden* brand and generating customer leads. This includes maintaining a high-quality website and a strong online presence (with effective Search Engine Optimisation (SEO)) to ensure *My Tidy Garden* appears prominently in online search results. The Franchisor will integrate appropriate technologies, including AI-driven tools, to enhance marketing effectiveness and customer engagement – for example, using chatbots to respond to initial customer enquiries on the website. All customer leads generated through the Franchisor’s central marketing efforts that fall within the Franchisee’s Territory will be promptly forwarded to the Franchisee. The Franchisor does not guarantee a specific volume of leads, but commits to robust marketing efforts intended to drive as much business as possible to the Franchisee’s Territory, especially during the launch phase. In the early stages of the Franchisee’s operation, the Franchisor may also directly assist in securing work for the Franchisee by subcontracting surplus jobs or inquiries from nearby areas to the Franchisee, to help them build momentum.

3.4 Technology and Systems. The Franchisor will provide access to and maintain the central technology systems that support the Franchise Business, including the customer enquiry and booking system, scheduling and invoicing software, and any other tools that are part of the *My Tidy Garden* System. The Franchisor will ensure these systems are functional and updated as needed, and will inform the Franchisee of any major updates or new features (such as new AI tools or platform improvements). The Franchisor will also provide initial training and documentation on how to use these systems effectively.

Operations Manual and Guidelines: On commencement, the Franchisor shall provide the Franchisee access to the My Tidy Garden Operations Manual or equivalent documentation (which may be provided in electronic form via the app or a website). This manual contains detailed operational guidelines, service standards, equipment usage instructions, safety procedures, customer service protocols, and other policies that the Franchisee must adhere to. The Franchisee acknowledges the importance of these guidelines and agrees to follow the Operations Manual and any updates to it as binding instructions. The Franchisor may update or amend the Operations Manual from time to time to reflect best practices or new system standards, and will notify the Franchisee of any material changes.

3.5 Community and Collaboration. The Franchisor will facilitate a collaborative franchisee network. This may include organising group calls, online forums, or annual meetings where

franchisees can share experiences, advice, and resources. The Franchisor encourages a spirit of teamwork; for example, if one franchisee has more work than they can handle, the Franchisor can assist in referring or subcontracting that work to another franchisee (with the consent of both). Likewise, specialised equipment or resources might be shared on an as-needed basis through the Franchisor's coordination. Participation in collaborative activities is generally voluntary and at the Franchisee's discretion, but it is highly encouraged as a way to strengthen the network and provide better service to customers across all territories.

3.6 Continuous Improvement and Reviews. The Franchisor will continually strive to improve the *My Tidy Garden* System and services. Franchisee feedback and suggestions are actively encouraged. The Franchisor agrees to listen to and consider good-faith suggestions from the Franchisee for improvements to any aspect of the franchise system (be it the technology, marketing strategies, or operational processes). In addition, the Franchisor will conduct an **annual review** with the Franchisee to discuss the Franchisee's business performance, address any concerns, and identify opportunities for growth. If the Franchisee is performing well and both parties see mutual benefit in expanding the Franchisee's business, the Franchisor may offer an expanded territory or an additional adjacent territory to the Franchisee, subject to mutual agreement and any necessary modifications to this Agreement (such as an addendum defining the new territory). These annual reviews are intended to be positive and forward-looking, focusing on helping the Franchisee succeed and setting goals for the next year.

3.7 Additional Training: If at any time the Franchisee or its staff require refresher training or if the Franchisor introduces new services, equipment, or processes, the Franchisor may offer additional training sessions. The Franchisor may require the Franchisee to attend certain mandatory training updates (for example, an annual franchisee meeting or training conference) with reasonable notice. Except for any travel or accommodation expenses (which shall be the Franchisee's responsibility), such mandatory update training will be provided at no additional charge to the Franchisee.

Franchisee's Acknowledgement: The Franchisee agrees that training and support provided by the Franchisor are critical to the Franchise Business. The Franchisee and, where applicable, its designated manager or employees, shall diligently attend and complete all required training. The Franchisee shall also implement and follow the advice and guidance provided by the Franchisor to the best of its ability. Failure to substantially follow the Franchisor's established methods and training may be deemed a breach of this Agreement if it results in substandard service or brand damage.

4. Franchisee's Duties and Obligations

4.1 Operation of the Franchise Business

The Franchisee shall diligently and faithfully operate the Franchise Business in accordance with the My Tidy Garden System and the standards set by the Franchisor. The Franchisee must devote their best efforts to the management and operation of the Franchise Business. All services to customers shall be performed in a conscientious, competent, and workmanlike manner, consistent with the quality and customer service standards of My Tidy Garden.

4.2 Compliance with Standards

The Franchisee shall strictly adhere to all of the Franchisor's operating procedures, quality standards, and guidelines as provided in the Operations Manual or otherwise communicated in writing. This includes, but is not limited to, standards for service quality, customer service protocols, use of approved materials, appearance and conduct (for example, wearing My Tidy Garden branded attire), and health and safety practices. The Franchisee understands that maintaining uniform standards across all franchisees is crucial to the collective reputation of the My Tidy Garden brand.

4.3 Use of Approved Materials and Suppliers

The Franchisee shall use only those products, supplies, and equipment that meet the specifications or standards prescribed or approved by the Franchisor. If the Franchisor recommends or requires certain suppliers or brands for key items (such as uniforms, vehicle signage, or specialised tools), the Franchisee should follow those guidelines unless otherwise agreed in writing. This ensures consistency and reliability in the services provided under the My Tidy Garden name. (The Franchisor may provide a list of approved suppliers, but unless otherwise provided, the Franchisee is responsible for procuring their own equipment and supplies in line with the guidance given.)

4.4 Brand Integrity & Marketing

The Franchisee must use the My Tidy Garden name, logos, and trademarks only as authorized. Local marketing efforts (flyers, social media, etc.) must adhere to brand guidelines. Misleading claims are prohibited. The Franchisee is encouraged to undertake community-based marketing to grow business in the Territory.

4.4.1 Approved Branding and Materials

The Franchisee shall operate the Franchise Business only under the brand name "My Tidy Garden" (and no other brand) and in accordance with the Franchisor's branding guidelines. All advertising, marketing materials, business cards, signage, uniforms, and other representations of the business must use the approved logos, colour schemes, and materials provided or specified by the Franchisor. The Franchisee shall not alter or misuse the My Tidy Garden trademarks or branding in any way not permitted by the Franchisor. Any new marketing materials or advertisements the Franchisee wishes to use (aside from templates provided) must be approved in writing by the Franchisor in advance.

4.4.2 Uniform and Appearance

The Franchisee and any employees or helpers shall wear the official My Tidy Garden uniform or work attire as prescribed by the Franchisor whenever performing services or meeting with

customers under the franchise. The Franchisee is responsible for purchasing the required uniforms from the Franchisor or an approved supplier. The Franchisee shall maintain the uniform in good, clean condition to uphold a professional appearance that reflects positively on the brand.

4.4.3 Equipment and Tools

The Franchisee is responsible for procuring and maintaining all tools, equipment, and vehicles necessary for the operation of the Franchise Business (e.g., lawn mowers, gardening tools, vans or trailers, safety gear, etc.). All equipment used should meet the standards and specifications that the Franchisor may recommend or require (for example, having certain safety features or being of a professional grade to ensure quality service). The Franchisor may provide a list of recommended or required equipment. While the Franchisee bears the cost of purchasing these tools and equipment, the Franchisor's support team can provide guidance on cost-effective options and reputable suppliers. The Franchisee agrees to always use properly functioning and safe equipment in delivering services.

4.4.4 Vehicle Livery (Signage)

The Franchisor may offer optional vehicle branding (such as magnetic signs or vinyl wraps with the My Tidy Garden logo and contact details) for the Franchisee's service vehicle. The cost of producing and installing such vehicle signage, if the Franchisee elects to use it, shall be borne by the Franchisee; however, the Franchisee must use the Franchisor's approved design to maintain brand consistency. The Franchisee is encouraged but not strictly required to brand their vehicle, as it can serve as local advertising; if they choose not to, they must still avoid using any unapproved branding.

4.4.5 Marketing and Advertising

In consideration of the Franchise Fee, the Franchisor will include the Franchisee in its overall branding and marketing efforts. This includes a presence on the main My Tidy Garden website, inclusion in any national or regional online advertising campaigns that feature franchise locations, and use of the My Tidy Garden app which may generate customer leads. The Franchisor may also conduct general marketing (such as social media advertising, search engine ads, or print campaigns) that cover the Franchisee's Territory, at no extra direct cost to the Franchisee beyond the Franchise Fee.

If the Franchisee wishes to undertake additional local marketing initiatives beyond what the Franchisor provides (for example, distributing local flyers, sponsoring local events, or running local online ads specifically for the Territory), such efforts and costs will be the responsibility of the Franchisee. The Franchisor can provide template materials and guidance for such local marketing. If the Franchisee wants the Franchisor to manage an extra marketing campaign on their behalf (e.g., an ad campaign with a specific budget targeting the Territory), the parties can agree on an extra marketing fee or budget for that purpose.

All marketing by the Franchisee must portray the My Tidy Garden brand in a positive and consistent manner. The Franchisee shall refrain from any misleading or exaggerated claims in

advertising and shall comply with the Advertising Standards Authority (ASA) guidelines and any other applicable advertising laws in the UK.

4.4.6 Business Stationery and Online Presence

The Franchisee shall use business stationery (invoices, quotes, emails, etc.) that clearly identifies the business as "My Tidy Garden – [Franchisee Name or Territory]" or another format approved by the Franchisor. The Franchisee shall not create a separate website using the My Tidy Garden name; instead, the Franchisor will provide a dedicated webpage as described in Section 9.

4.4.7 Costs and Expenses

Except as otherwise specified in this Agreement, all costs related to the setup and operation of the Franchise Business are the responsibility of the Franchisee. This includes, but is not limited to, the costs of tools, equipment, vehicle purchase/lease and maintenance, fuel, insurance, uniforms, local marketing initiatives the Franchisee chooses to undertake, and any necessary business licences or permits. The Franchisee should maintain a budget for replacing or repairing equipment as needed to avoid service interruptions.

4.4.8 Insurance

The Franchisee is required to obtain and maintain at its own expense adequate insurance coverage for the operation of the Franchise Business. This should include at minimum: public liability insurance (to cover injury or property damage to clients or third parties during the course of work), employer's liability insurance (if the Franchisee hires any employees or helpers, as required by law), and any vehicle insurance for commercial use of vehicles. The Franchisor may request proof of such insurance coverage annually or at any time. Failure to maintain required insurance is a serious breach, as it puts both the Franchisee and the Franchisor's brand at risk.

4.4.9 Branding Changes

The Franchisee acknowledges that the Franchisor may from time to time update or change the branding, logos, or image of the My Tidy Garden system (for example, a rebranding or logo refresh). In such event, the Franchisor will provide reasonable notice and guidance to the Franchisee for transitioning to the new branding. The Franchisee agrees to implement any such branding changes within a reasonable timeframe, at its own expense (though the Franchisor will try to minimize costs by providing templates or digital assets). The Franchisor will not require a change that renders existing stock of uniforms or materials obsolete without allowing a transition period to use up or phase out old stock.

4.5 Customer Service and Values

The Franchisee will actively uphold My Tidy Garden's core values: caring for customers' needs, being honest in all dealings, and communicating clearly and promptly. The Franchisee should strive for excellent customer service, responding to customer enquiries quickly (using the provided systems or otherwise), arriving punctually for appointments, and conducting themselves courteously and ethically at all times. If any customer complaints or issues arise, the Franchisee must address them promptly and inform the Franchisor of serious issues, especially those that could affect the brand's reputation.

4.6 Business Administration

The Franchisee is responsible for the day-to-day administration of the Franchise Business. This includes keeping accurate books and records of sales, expenses, and customer information, using the provided management tools for consistency. The Franchisee must maintain records in a manner that allows the Franchisor to assess performance; the Franchisor may request periodic reports or access to certain data (such requests will be reasonable and relevant to assessing the business). The Franchisee must also handle all required local business obligations, such as registering for taxes, obtaining any necessary local licences or permits to perform gardening services, and securing appropriate insurance coverage (e.g., public liability insurance, vehicle insurance for any branded vehicles, and employer's liability insurance if the Franchisee hires staff). The Franchisee shall provide proof of such insurance to the Franchisor upon request.

4.7 Payment of Fees

The Franchisee shall pay all fees due to the Franchisor (including the Monthly Fee and any other agreed charges) on time, in accordance with Section 2 of this Agreement. Persistent lateness or non-payment of fees will be treated as a serious breach of this Agreement. If the Franchisee anticipates difficulty in paying any fee on time, they should inform the Franchisor as soon as possible to discuss potential solutions or arrangements.

4.8 No Unauthorised Business Activities

The Franchisee shall not engage in any business or activity that competes with or is similar to the My Tidy Garden franchise business during the Term of this Agreement, except as expressly permitted in writing by the Franchisor. The Franchisee also shall not use the My Tidy Garden franchise for any illegal or unauthorised purpose. Any proposed variations or additions to the business (for example, offering a new type of service outside the standard menu of My Tidy Garden services) should be discussed with and approved by the Franchisor in advance.

4.9 Collaboration and Communication

The Franchisee is encouraged to actively participate in the My Tidy Garden franchise community. This includes attending franchisee meetings or calls, sharing best practices or tips with fellow franchisees, and contributing ideas to the Franchisor. If the Franchisee encounters operational challenges or has suggestions for improvement, they should communicate these to the Franchisor – we value open communication and innovation. Similarly, the Franchisee should co-operate with the Franchisor on any reasonable requests, such as participating in an annual performance review (as described in section 3.6) or providing testimonials and case studies for marketing purposes. The Franchisee should feel free to reach out for help at any time; the Franchisor is there to support the Franchisee's success.

4.10 Efforts in Territory

The Franchisee should actively work to develop the business within their Territory. While the Franchisor will generate leads through central marketing, it is beneficial for the Franchisee to engage with the local community – networking with local organisations, participating in community events, or simply building word-of-mouth referrals – to establish a strong local presence. If the Franchisee is unable to service a particular customer request (for instance, due

to temporary capacity issues or a service outside their expertise), they should consider referring the customer back to the Franchisor or to another My Tidy Garden franchisee rather than turning the customer away. In the same spirit, if a neighbouring franchisee requires assistance, the Franchisee may choose to help or take on subcontracted work, coordinating with the Franchisor as needed. Such collaboration helps ensure customers are always served and franchisees can maximise opportunities.

4.11 Full-Time Commitment

The Franchisee is expected to devote their full working time and best efforts to the operation and growth of the Franchise Business. The Franchisee shall treat the franchise as a full-time business venture. The Franchisee (and any of the Franchisee's staff) should be available to provide services to customers during normal business hours for this industry (e.g., weekdays and occasional weekends as needed for gardening work, subject to customer demand and reasonable working hours). The Franchisee should not engage in any other business or employment that would conflict with or detract from their ability to operate the My Tidy Garden franchise effectively, without the prior written consent of the Franchisor.

4.12 Quality and Customer Service

The Franchisee shall deliver services to customers in a professional, diligent, and high-quality manner consistent with the standards set by My Tidy Garden. This includes performing all gardening and maintenance tasks with due care and skill, being punctual for appointments, communicating politely and clearly with customers, and addressing any customer inquiries or complaints promptly and effectively. The Franchisee must ensure that each job is completed to a standard that meets or exceeds the customer's reasonable expectations and the benchmarks provided in the Operations Manual or training.

4.13 Compliance with System and Processes

The Franchisee must adhere to all prescribed processes and use the tools provided by the Franchisor for running the business. In particular:

- The Franchisee shall use the My Tidy Garden app (or any updated system provided) for scheduling all customer appointments, recording job details, generating quotes and invoices, and tracking payments. This ensures consistency and allows the Franchisor to assist with or monitor overall operational metrics. All customer data and job records should be entered into the system in a timely manner.
- The Franchisee shall follow any pricing guidelines or frameworks provided by the Franchisor when quoting jobs, unless a deviation is necessary for a particular situation (in which case it should be justifiable by costs or local market conditions).
- The Franchisee shall abide by the recommended techniques and procedures for gardening tasks as taught in training (for example, correct pruning techniques, safe use of power tools, environmentally responsible waste disposal, etc.), as well as any health and safety protocols.

4.14 Minimum Business Practices

The Franchisor may set certain minimum performance benchmarks or business practices that franchisees must meet. These may include:

- Responding to new customer inquiries within a maximum timeframe (for example, contacting any new lead within 24 hours).
- Providing quotes to customers within a certain number of days of a site visit or inquiry.
- Completing scheduled jobs within the timeframe agreed with the customer (weather permitting or unless rescheduled by agreement).
- Submitting periodic business reports or participating in review meetings when requested by the Franchisor to discuss performance (even after the formal training period, e.g., a quarterly review of key performance indicators).
- Maintaining a minimum average customer satisfaction rating if such metrics are collected (for instance, if the Franchisor gathers customer feedback or reviews).

The Franchisee agrees to use best efforts to meet or exceed these benchmarks. Failure to meet the minimum requirements may trigger additional support or training from the Franchisor; however, repeated or wilful failure to adhere to essential practices or consistently low performance may constitute a breach of this Agreement.

4.15 Franchisee's Staff and Conduct

If the Franchisee hires any helper or employee, the Franchisee is responsible for ensuring that such personnel are adequately trained (the Franchisor can assist with training of new staff if needed) and that they comply with the standards and practices of My Tidy Garden. The Franchisee remains liable for the actions of their employees in the course of the franchise operations. All helpers/employees must also wear the My Tidy Garden uniform and behave courteously and professionally. If an employee or helper engages in misconduct or performs poorly, the Franchisor may require the Franchisee to retrain or, if necessary, remove that person from performing franchise services if their actions are damaging the brand.

4.16 Meetings and Network Events

The Franchisee (or a representative) should attend any mandatory franchise network meetings, conferences, or training updates organized by the Franchisor (reasonable notice will be given and these will not be unreasonably frequent). These events are intended to share best practices, convey updates, and maintain the cohesion of the franchise network. The Franchisee's attendance and participation demonstrate commitment to the system's success.

4.17 Continuous Improvement

The Franchisee is encouraged to actively seek ways to grow and improve the business in their Territory, such as building relationships with customers for repeat maintenance schedules,

seeking referrals, and exploring new service offerings (with Franchisor's approval for any new services under the brand). The Franchisor welcomes feedback and ideas from the Franchisee that could benefit the My Tidy Garden system as a whole, and any innovations developed by the Franchisee can be shared within the network.

4.18 No Guaranteed Income

The Franchisee acknowledges that while the Franchisor will provide training, support, and a proven business model, the Franchisee's income and success are not guaranteed. The Franchisee's earnings will depend on local market conditions, the Franchisee's own effort and skill in operating the business, and the Franchisee's adherence to the system. The Franchisee shall not make representations to customers or others implying that their franchise is an employment position or that income is assured by the Franchisor. The Franchisee is solely responsible for all costs of the Franchise Business and understands the risks and potential rewards of self-employment.

5. Term of Agreement & Customer Ownership

5.1 Initial Term

This Agreement shall begin on the Commencement Date (the date it is signed by both parties) and shall continue in force for an Initial Term of three (3) years, unless terminated earlier in accordance with the provisions of this Agreement.

5.2 Renewal and Renewal Term

Upon the expiration of the Initial Term, this Agreement shall renew for an additional term of five (5) years (the first "Renewal Term"), provided that the Franchisee:

- Is not in material breach of this Agreement at the time of renewal (and has substantially complied with all terms and met the Franchisor's performance standards);
- Has paid all amounts due to the Franchisor and satisfied all other material obligations;
- Provides written notice to the Franchisor not less than 180 days prior to the end of the Initial Term of the Franchisee's intention to renew (the Franchisor may at its discretion waive or shorten the required notice period).

After the first Renewal Term, the franchise may continue to renew for additional five-year Renewal Terms thereafter on the same conditions (with each such renewal occurring at the expiry of the then-current term), unless either party provides a notice of non-renewal at least 180 days prior to the end of the current term. At the time of each renewal, the Franchisor may require the Franchisee to sign a then-current form of franchise agreement or an addendum to update terms that have generally been adopted for the franchise network, provided that the core

financial terms (such as the Franchise Fee structure) remain in line with this Agreement unless mutually agreed otherwise.

5.3 No Renewal / End of Term

If either Party provides a timely notice of intent not to renew at the end of the Initial Term or any Renewal Term, this Agreement will expire at the end of the then-current term. In such case, the Franchisee shall cease operating the Franchise Business and comply with all post-termination obligations (including, without limitation, returning or destroying materials, ceasing use of the Marks, transferring customers if required, and honoring the restrictive covenants) as set forth in Section 9.4 (Consequences of Termination or Expiration) and Section 8 (Restrictive Covenants), and with the customer transfer obligations in Section 5.6, and any other applicable provisions of this Agreement. The Franchisee must promptly carry out these duties to ensure a proper wind-down of operations.

5.4 Customer Ownership During Initial Term

During the Initial Term (the first three (3) years of this Agreement), all new Customers acquired by the Franchise Business (excluding any “Existing Customers of the Franchisee” disclosed in writing at the Commencement Date) shall be considered part of the Franchisor’s network for purposes of customer relationship ownership. The Franchisee is entrusted to service these Customers on behalf of the Franchisor during this period; however, the Franchisee remains responsible for day-to-day operations, invoicing, and receiving revenue from such Customers.

The Franchisee shall not represent to any Customer or third party that the Franchisee is the ultimate owner of the My Tidy Garden brand or these Customer relationships, but may describe themselves accurately as “the local franchise operator of My Tidy Garden in [Territory].” If asked, the Franchisee should clarify that they operate an independent franchise business under license from the Franchisor.

5.5 Customer Ownership Transfer upon Renewal

If the Franchisee successfully completes the Initial Term and renews this Agreement for a Renewal Term in accordance with Section 5.2, then effective from the start date of that Renewal Term, ownership of the Customer relationships serviced by the Franchisee during the Initial Term shall transfer to the Franchisee. From that point onward, such Customers will be deemed the Franchisee’s own Customer base, subject to this Agreement’s ongoing obligations (including quality standards, confidentiality, and any post-termination covenants that may apply).

The Franchisor will, if requested by the Franchisee, provide a written acknowledgment or addendum confirming that all Customers served during the Initial Term (save for those specifically excluded at the Commencement Date) are now recognized as belonging to the Franchisee. The Franchisor retains its ownership of the My Tidy Garden brand, any overarching network-level data or analytics, and other proprietary rights unrelated to direct customer relationships.

5.6 Consequences if No Renewal (Customer Handling)

If the Franchisee does not renew after the Initial Term, or if this Agreement is terminated during

the Initial Term for any reason, the Franchisee acknowledges and agrees that it does not have any ownership rights in the Customers acquired during the Initial Term (except for any pre-existing customers it had prior to signing, as disclosed at the Commencement Date). The Franchisee shall cooperate fully with the Franchisor (and/or any replacement franchisee) to transfer those Customers and relevant Customer records back to the Franchisor's control or to a designated successor, including but not limited to:

1. Providing up-to-date contact information, service histories, job schedules, and any pending quotes or job details for all affected Customers;
2. Handing over any deposits or prepayments for work not yet performed;
3. Refraining from soliciting or serving those Customers thereafter, in accordance with Section 8 (Restrictive Covenants).

For the avoidance of doubt, the Franchisee's "Existing Customers" disclosed in writing at the start are exempt from this requirement; the Franchisee retains the right to continue servicing those unrelated to My Tidy Garden if they cease operating under this Agreement. However, the Franchisee shall still comply with any post-termination non-solicitation and non-compete obligations as set out in Section 8 with respect to other Customers.

5.7 Customer Ownership in Subsequent Terms

Once Customer relationships have transferred to the Franchisee under Section 5.5 at the start of the first Renewal Term, the Franchisee **continues** to own those relationships during any subsequent Renewal Terms, provided this Agreement remains in force. In the event of a **later** termination or non-renewal in a subsequent term, the Franchisor does not assert ownership over those Customers, but the Franchisee must still comply with any **post-termination restrictive covenants** (including non-solicitation and non-compete under Section 8) for the duration specified.

Should the Franchisee violate those covenants, all remedies provided under this Agreement (including injunctive relief and potential extension of restrictive periods) shall apply. After expiration of the post-termination restricted period, any further dealings between the Franchisee and those Customers fall outside the scope of the Franchisor's ownership claim, subject only to any other surviving obligations under this Agreement.

6. Resale of Franchise

6.1 Eligibility to Sell

The Franchisee shall have no right to sell, assign, or transfer the Franchise Business during the Initial Term of this Agreement. Only after successfully completing the full initial three-year term –

and thereby obtaining full ownership of the customer relationships in the Territory as provided in this Agreement (see Section 5.5 on Customer Ownership Transfer) – may the Franchisee propose to sell or transfer the Franchise Business to a third party.

6.2 Franchisor's Prior Consent

Any sale or transfer of the Franchise Business requires the Franchisor's prior written consent. The Franchisee must notify the Franchisor in writing of the intent to sell and provide full details of the proposed transaction and the prospective buyer. The Franchisor shall not unreasonably withhold or delay consent to a resale, provided that all conditions of this Section are met.

6.3 Approval of Prospective Buyer

The prospective purchaser ("incoming franchisee") must be qualified and approved by the Franchisor. This includes, at minimum, the buyer's satisfaction of the Franchisor's criteria for new franchisees (such as appropriate experience, business acumen, financial resources, and commitment to uphold My Tidy Garden standards). The incoming franchisee will be required to attend and pass the Franchisor's initial training course before taking over the business. If the prospective buyer fails to meet the Franchisor's qualifications or does not successfully complete the required training, the Franchisor may withhold consent and the sale shall not proceed. The buyer must also agree to enter into the then-current Franchise Agreement (or sign a formal deed of transfer, as directed by the Franchisor) as a condition of taking over the franchise. In sum, the Franchisee can only sell to a buyer who is fully approved by the Franchisor and ready to step into the franchisee role.

6.4 Franchisor's Right of First Refusal

Before finalizing any sale to a third party, the Franchisee must first offer the Franchise Business to the Franchisor on the same terms and conditions. Upon receiving the Franchisee's notice of intent to sell (including the proposed price and terms offered by or to any identified buyer), the Franchisor shall have the option (but not the obligation) to purchase the Franchise Business itself. The Franchisor may exercise this right of first refusal by giving written notice to the Franchisee within [X] days of receiving full details of the proposed sale. If the Franchisor elects to buy the business, it will do so either on the same terms offered by the third-party buyer or at a price determined in accordance with the valuation model described below (whichever is fair and acceptable to both Parties). If the Franchisor declines to exercise this right (or fails to respond within the [X]-day period), the Franchisee may proceed to sell to the third-party buyer on the exact terms notified to the Franchisor, subject to the Franchisor's final approval of the buyer as per this clause. If the terms of sale to the third party change materially, or if an alternative buyer emerges, the Franchisee must re-offer the business to the Franchisor on the revised terms.

6.5 Valuation of the Franchise (Customer-Based Model)

For the purposes of any resale or buy-back, the Parties recognize a valuation approach based on the franchise's customer base. In particular, the Franchisor may estimate the business's value by valuing each active customer at approximately one year's net profit contribution. By way of example: if a typical customer generates £600 in annual revenue and costs about £500 per year to service, the net profit from that customer is £100, and thus that customer would be valued at roughly £100 under this model. This customer-based valuation model is intended as a

guideline for determining a fair price for the franchise upon resale. The actual sale price remains subject to agreement between the seller and buyer (or, in the case of a Franchisor buy-back, agreement between the Franchisee and Franchisor), taking into account all assets of the business, its financial performance, and intangible goodwill. The Franchisee acknowledges that setting an excessively high sale price could be counterproductive – for instance, a price so high that the incoming owner would struggle to earn a reasonable return may be grounds for the Franchisor to refuse consent on the basis of anticipated financial unsustainability. Both Parties agree to approach valuation and sale negotiations in good faith, using reasonable metrics such as the above to ensure the continuity and health of the franchise business.

6.6 Partial Sale or Transfer of Customer Rounds

In addition to selling the entire Franchise Business, the Franchisee (once it owns the customers under Section 5.5 or if otherwise permitted by the Franchisor) may propose to sell individual customers or groups (“rounds”) of customers to another My Tidy Garden franchisee. Any such partial sale also requires the Franchisor’s prior written consent and must follow similar principles to those in Sections 6.2–6.5. In particular:

- **(a)** The seller and buyer must agree on a purchase price using a fair valuation approach, typically following the same “one year’s net profit per customer” guideline described in Section 6.5.
- **(b)** The buyer must be (or become) an approved My Tidy Garden franchisee in good standing, although existing My Tidy Garden franchisees may require less formal approval if they already meet the system’s criteria.
- **(c)** The Franchisor may require the parties to sign additional documents (e.g., an addendum to acknowledge the change in customer ownership).
- **(d)** The same transfer fees or administrative costs may apply proportionally to the partial sale, as determined by the Franchisor.

The Franchisee acknowledges that any partial transfer of its customer base must not undermine the Territory’s overall viability or breach any franchisor policies on territory overlaps. The Franchisor reserves the right to refuse consent if the partial sale would negatively impact network integrity or if it appears financially or operationally unsustainable for the buyer.

6.7 Transition and Cooperation

In the event a transfer (full or partial) is approved, the outgoing Franchisee must fully cooperate with the Franchisor and the incoming franchisee to ensure a smooth handover of the business or customer accounts. This includes, without limitation, transferring all relevant customer records, schedules, and business information; making introductions of the new owner to key customers during a handover period; and taking any other actions reasonably requested by the Franchisor to facilitate a seamless transition of operations and customer relationships. The Franchisee shall not be required to provide formal training to the buyer – the Franchisor will

handle the official training program for new franchisees – but the Franchisee is expected to exercise all due diligence and goodwill in assisting the newcomer during the transition (for example, by allowing the incoming franchisee to shadow operations for a brief period or being available for consultative support in the first few weeks). The goal is to avoid any disruption in service to customers and to maintain the reputation and standards of My Tidy Garden throughout the ownership change. The outgoing Franchisee shall also return or relinquish any Franchisor-owned property, materials, or branding in their possession as required elsewhere in this Agreement, and otherwise comply with any exit obligations (confidentiality, non-solicitation of customers, etc.) that apply upon transfer or termination of the franchise.

6.8 Transfer Fees and Costs

Upon an approved resale or partial sale of the Franchise Business (or a portion of the customer base), the Franchisee agrees to pay the Franchisor any applicable transfer or administrative fee. This fee is intended to compensate the Franchisor for its time and expenses in vetting and approving the new franchisee, providing training to the incoming owner, updating records, and facilitating the changeover. The amount of the transfer fee shall be determined by the Franchisor in line with common industry practice – for example, it may be stipulated as a fixed sum or as a percentage of the Franchisor's then-current initial franchise fee or of the sale price of the business/round. If the Franchisor itself sources or introduces the buyer to the Franchisee (acting in effect as a business transfer agent), an additional commission fee may be charged, typically around 5% of the sale price. Any such fees will be disclosed to the Franchisee in advance and would be due at the completion of the sale (usually deducted from the sale proceeds). The Franchisee's solicitor may be required to give an undertaking that these franchisor fees will be paid out of the completion funds. The Franchisee agrees that these fees are fair and customary in franchising and are a condition to the Franchisor granting consent to the transfer. (For the avoidance of doubt, if no sale occurs or if consent is refused, no transfer fee is payable; and the Franchisor will not levy any transfer fee unless and until a transfer is consummated with its approval.)

6.9 Documentation of Transfer

If all the above conditions are met and the sale is to proceed (full or partial), the Franchisee, the Franchisor, and the incoming franchisee shall execute all necessary documentation to formally assign or novate this Agreement (or to terminate this Agreement and simultaneously sign a fresh franchise agreement with the buyer, as directed by the Franchisor). The effective date of transfer will be the date of completion of the sale, at which point the incoming franchisee will assume the rights and obligations of the Franchisee under the Franchise Agreement (in the case of a full sale), or become the new owner of the relevant customer base (in a partial transfer). The outgoing Franchisee will be released from further performance of this Agreement after that completion date only upon satisfying all requirements of this Resale clause and any other relevant provisions (including payment of any sums due to the Franchisor, return of confidential materials, and adherence to post-termination covenants). Failure by the Franchisee to comply with the terms of this clause or to obtain the Franchisor's written consent for a transfer shall render any purported sale or assignment null and void, and would constitute a breach of this Agreement by the Franchisee.

6.10 Fairness and Franchisor Protection

This Resale of Franchise clause is intended to strike a balance between protecting the Franchisor's business interests and network integrity, and allowing the Franchisee a fair opportunity to realise the value of their business after the initial term. By requiring Franchisor approval and a qualified buyer, the quality and success of the franchise network is maintained. By allowing a sale after three years and granting the Franchisee full ownership of customers at that point, the Franchisee has a genuine asset to sell and can benefit from the goodwill they have built. The Franchisor's right of first refusal ensures the Franchisor can step in to re-acquire a strategic territory if needed (or prevent a transfer that might harm the network), while the valuation guidance helps set reasonable expectations for all parties. Standard transfer fees are applied only to cover costs and are in line with normal franchising practice, so as not to unduly discourage the Franchisee's exit opportunity. Overall, this clause protects the Franchisor's brand and system from unsuitable owners and disruptive transfers, yet remains fair and attractive to franchisees by permitting resales on reasonable terms once the Franchisee has established their business.

7. Intellectual Property & Confidentiality

7.1 Use of Trademarks and Intellectual Property

The Franchisee acknowledges that the My Tidy Garden trademarks, trade name, logos, and all associated branding elements are the exclusive property of the Franchisor (or its licensors). The Franchisee is granted a limited, non-transferable, non-sublicensable licence to use the My Tidy Garden name, logos, and branding only in connection with the operation of the Franchise Business, and strictly in accordance with this Agreement and any brand guidelines provided. The Franchisee shall not use the trademarks or name in any way not permitted by the Franchisor, and shall not do or omit to do anything that could tarnish or dilute the value of the My Tidy Garden brand. All goodwill generated by the Franchisee's use of the trademarks and brand shall accrue solely to the benefit of the Franchisor. Upon expiration or termination of this Agreement, any and all rights of the Franchisee to use My Tidy Garden intellectual property shall immediately cease.

7.2 Proprietary Information

The Franchisee acknowledges that the Operations Manual, training materials, marketing strategies, customer leads provided by the Franchisor, software (including any access credentials), and other proprietary information or know-how supplied by the Franchisor (collectively, "Confidential Information") are confidential and valuable assets of the Franchisor. The Franchisee agrees that they will not, during the Term or at any time thereafter, disclose any Confidential Information to any third party (except to the Franchisee's employees who need to know it for the purpose of operating the franchise, and who are bound to keep it confidential) or use the Confidential Information for any purpose other than the operation of the Franchise Business in compliance with this Agreement. This confidentiality obligation survives the termination or expiration of this Agreement.

7.3 Data Protection

Each Party agrees to comply with applicable data protection and privacy laws with respect to any personal data obtained or processed in connection with this franchise relationship. The Franchisor may collect and process certain personal data of the Franchisee (or its staff) and customers for the purposes of performing this Agreement and supporting the franchise network, in accordance with the applicable privacy policy. The Franchisee, in operating the business, may have access to customers' personal data (such as contact details and service history) through the Franchisor's systems; the Franchisee shall use such data solely for the purpose of providing services to those customers and shall safeguard it in compliance with data protection laws (for example, the UK GDPR and Data Protection Act, or equivalent laws). If the Franchisee independently collects personal data (for example, through local marketing initiatives or customer interactions outside the Franchisor's central systems), the Franchisee is responsible for providing any required notices and obtaining any necessary consents, and for protecting that data. In the event of any data breach involving customer personal data, the Franchisee must promptly inform the Franchisor so that appropriate measures can be taken.

7.4 Use of App and Software

The Franchisee is granted access to use the My Tidy Garden proprietary software application (the app) and any related software or platforms provided by the Franchisor, strictly for managing the Franchise Business. The Franchisee shall not copy, reverse engineer, disassemble, or create derivative works from the software. The Franchisee's access may be subject to user terms which the Franchisor will provide. All data input into the app by the Franchisee is owned by the Franchisor, though the Franchisee can access and use it for business operation. The Franchisor will comply with applicable data protection laws as a data controller of any personal data of customers.

7.5 Dedicated Web Page

The Franchisor will create and maintain a dedicated page on the official My Tidy Garden website for the Franchisee's business. This page will highlight the Franchisee's services in the Territory, provide contact information, and may include introductions or profiles of the Franchisee. The Franchisor will ensure that inquiries through this page are directed to the Franchisee. The website and its content are part of the Franchisor's marketing, and the Franchisor has control over the design and content of the page to ensure consistency and search engine optimization. The Franchisee may request updates or changes to information on that page (for example, adding photos of recent work or testimonials specific to their Territory) and the Franchisor will accommodate reasonable requests.

7.6 Social Media and Content Contribution

The Franchisee is encouraged to take photographs of completed projects, write brief updates about their jobs or tips for garden care, and share these with the Franchisor for use in marketing. Any such content provided by the Franchisee to the Franchisor may be used, edited, and published by the Franchisor on the My Tidy Garden website, social media channels, or other marketing materials to promote the franchise network and the Franchisee's business. The Franchisee grants the Franchisor a royalty-free, perpetual licence to use any content (such as photos or testimonials) that the Franchisee provides for these purposes. The Franchisee

confirms that any content they provide will either be originally created by them or that they have secured permission to use (e.g., if a photo is taken by a helper, or a customer is featured, the Franchisee should ensure proper consent has been obtained). The Franchisor will give credit to the Franchisee where appropriate (such as mentioning the location or Franchisee name with the content) to connect the marketing to the Franchisee's services.

7.7 Standards for IP Use

The Franchisee shall use the Marks and branding strictly in accordance with the standards and guidelines provided by the Franchisor. If the Franchisor provides specific rules (for example, regarding logo placement, colours, or tagline usage), the Franchisee must follow them. The Franchisee shall refrain from any use of the Marks that is not in line with the franchised business – for example, the Franchisee may not use the My Tidy Garden name to sell unapproved products or services, or in any manner that the Franchisor has not authorized.

7.8 Infringement

The Franchisee shall immediately notify the Franchisor if it becomes aware of any infringement or potential infringement of the My Tidy Garden Intellectual Property by third parties (for example, if someone in the Territory is using a confusingly similar name for gardening services). The Franchisor will have the right to take action as it deems appropriate, and the Franchisee shall cooperate in any such enforcement action (with expenses borne by the Franchisor).

7.9 IP After Termination

Upon expiration or termination of this Agreement, the Franchisee must cease all use of the Franchisor's Intellectual Property as detailed in Section 5 (Obligations upon Termination). The Franchisee must remove any signs or advertising with the Marks, discontinue the use of the My Tidy Garden name in any capacity, and transfer or close any phone numbers or listings that imply association with My Tidy Garden, as directed by the Franchisor. The Franchisee's licence to use all Intellectual Property ceases immediately upon termination.

7.10 Independent Development

The Franchisee agrees that any new concept, improvement, or development related to the My Tidy Garden business model or services that is conceived or made by the Franchisee during the term of this Agreement (and which is not trivial or entirely separate from the My Tidy Garden operations) shall be promptly disclosed to the Franchisor. The Franchisor shall have the right to incorporate such improvements into its system. If the improvement is a patentable invention or other protectable intellectual property, the Franchisee agrees to assign (or license exclusively) the rights to the Franchisor for the benefit of the whole franchise network, in exchange for recognition or a fair consideration to be discussed in good faith. This clause ensures that the franchise system can evolve and all franchisees benefit from innovations.

7.11 Trading Model

For the avoidance of doubt, nothing in this Agreement makes the Franchisee an agent of the Franchisor. The Franchisee operates as an independent business (sole trader or company) trading as "My Tidy Garden." The Franchisee must not sign or enter into any contracts or agreements on behalf of the Franchisor or in the name of "My Tidy Garden" except as

specifically allowed (for example, signing customer agreements or quotes as the local provider). The Franchisee should generally contract with customers in its own legal name but present itself as “My Tidy Garden” for branding purposes. The precise contracting structure with customers may be clarified by the Franchisor’s guidelines (e.g., whether invoices bear the Franchisee’s business name or the Franchisor’s). Typically, during the Initial Term when customers are considered part of the Franchisor’s network, the Franchisee might invoice under the My Tidy Garden letterhead but must always indicate the local trading entity for legal purposes. The Franchisor and Franchisee shall cooperate to ensure compliance with any consumer protection regulations regarding identifying the service provider.

8. Restrictive Covenants (Non-Competition, Non-Solicitation, and Confidentiality)

8.1 In-Term Non-Competition

During the term of this Agreement (including any Renewal Term), the Franchisee shall not, either directly or indirectly, engage in or be concerned with any business that competes with the Franchise Business or the My Tidy Garden system. This means the Franchisee (including any company controlled by the Franchisee or any immediate family members involved in the Franchisee’s business) shall not operate, have a financial interest in, or assist (as an owner, employee, consultant, or in any other capacity) any business that offers gardening, landscaping, or lawn care services similar to My Tidy Garden within the Territory or within any other territory in which the Franchisor or its franchisees operate.

The Franchisee’s entire focus must be on the My Tidy Garden franchise during the term of this Agreement. (This does not prevent the Franchisee from engaging in non-competing business activities outside of the gardening/landscaping sector, provided that such activities do not interfere with the Franchisee’s ability to fulfil their obligations under this Agreement.)

8.2 Post-Term Non-Competition

The Franchisee agrees that for a period of 12 months following the termination or expiration of this Agreement (for whatever reason), they will not carry on or be involved in a business offering gardening, lawn care, or similar services in competition with My Tidy Garden:

- Within the Territory, or
- Within a radius of ten (10) miles from the boundaries of the Territory, or
- (If the Franchisee provided services outside the Territory) within ten (10) miles of any location where the Franchisee had regularly provided services during the last 12 months of the franchise.

This restriction is intended to protect the legitimate business interests of the Franchisor and any new franchisee who may take over the Territory. The Franchisee acknowledges that this 12-month period is reasonable and necessary. After that period, the Franchisee must still refrain from using any of the Franchisor's trademarks or confidential methods.

8.3 Non-Solicitation of Customers

The Franchisee further covenants that during the term of this Agreement and for 12 months after its termination or expiration, the Franchisee shall not solicit, entice away, or attempt to solicit or service any Customer of the Franchise Business for the purpose of offering any competing services outside of the My Tidy Garden system. In particular, after termination, the Franchisee must not approach any customers that it served during the franchise (or whose information was obtained through the franchise) to move their custom to a new business operated by the Franchisee or any affiliate.

This clause applies regardless of whether the Franchisee or the Franchisor is deemed to "own" the customer at various stages of the Agreement – the intent is to protect the Franchisor's and any successor's customer relationships for that period.

Note: This clause does not prohibit the Franchisee from accepting unsolicited requests for work from former customers after termination, provided that the Franchisee did not initiate or encourage the contact and does not use any My Tidy Garden branding or Confidential Information. However, even in such cases, the Franchisee must still observe the post-term non-compete restriction.

8.4 Non-Solicitation of Employees and Franchisees

The Franchisee shall not, during the term of this Agreement and for 12 months thereafter, solicit or attempt to induce any employee, contractor, or other franchisee of the Franchisor (or its affiliates) to leave their position or cease doing business with the Franchisor. This means the Franchisee will not recruit or hire (for a competing business) any person who is or was during the last year of the franchise term employed by or a franchisee of My Tidy Garden, without the Franchisor's prior written consent.

8.5 Confidentiality

The Franchisee acknowledges that during the course of the franchise, they will have access to and be entrusted with Confidential Information (as defined in Definitions) that is proprietary to the Franchisor and vital to the business. The Franchisee shall not, during the term or at any time after the termination of this Agreement, disclose to any third party or use for any purpose outside the scope of the franchise any Confidential Information of the Franchisor. The Franchisee may only use Confidential Information for the purpose of operating the Franchise Business in compliance with this Agreement.

This obligation applies to any Confidential Information whether it was provided in written form, electronically, orally, or observed by the Franchisee.

Confidential Information does **not** include information that is or becomes publicly known through no fault of the Franchisee, or information that the Franchisee can demonstrate was independently developed or obtained by the Franchisee outside of the franchise without reference to the Franchisor's information.

If the Franchisee is required by law or legal process to disclose certain Confidential Information, the Franchisee must promptly notify the Franchisor (if legally permitted) so that the Franchisor may seek a protective order or other appropriate remedy. The Franchisee shall disclose only the minimum amount of information legally required and shall assert the confidential nature of such information.

The Franchisee shall ensure that any employees or helpers who have access to Confidential Information (such as customer lists, the Operations Manual, or the app) are bound by similar confidentiality obligations (for example, through confidentiality clauses in employment terms).

8.6 Enforcement and Remedies

The Franchisee acknowledges that the restrictions in this Section 8 are reasonable and necessary to protect the Franchisor's legitimate interests (including the franchise network and brand) and that breach of these covenants would cause irreparable harm to the Franchisor and the franchise network. In the event of an actual or threatened breach of the restrictive covenants, the Franchisee agrees that the Franchisor shall be entitled to seek immediate injunctive relief (such as a court order to restrain the Franchisee from continuing the breach) in addition to any other remedies available (including claiming damages).

The 12-month post-termination restrictions shall be deemed to run from the date of termination of the Agreement, and if the Franchisee is found to have breached any of those restrictions, the 12-month period may, at the court's discretion, be counted from when the breach ceased (to ensure the Franchisee does not benefit from violating the restriction).

8.7 Survival of Covenants

The provisions of this Section 8 shall survive the termination or expiration of this Agreement. If any portion of these restrictive covenants is held to be invalid or unenforceable by a court of competent jurisdiction, the parties agree that such portion shall be deemed modified to the minimum extent necessary to make it enforceable (for example, reducing a time period or geographic scope), and the remaining provisions shall continue in full force.

9. Termination

9.1 Termination by Franchisor for Cause

The Franchisor may terminate this Agreement by giving written notice to the Franchisee upon the occurrence of any of the following events of default by the Franchisee (each a "Cause" for termination), if such event is not cured within any applicable cure period provided below:

1. **Non-Payment**

The Franchisee fails to pay any fee or amount due to the Franchisor under this Agreement within 14 days after receiving written notice of such failure.

2. **Material Breach of Standards**

The Franchisee commits a serious breach of this Agreement or the Operating Standards (for example, unauthorized use of the brand, persistent quality failures, or violation of confidentiality obligations) and, if such breach is curable, fails to cure it within 30 days after written notice from the Franchisor specifying the breach and demanding remedy. For breaches that by their nature cannot be cured (such as fraud or criminal conduct), the Franchisor may terminate with immediate effect by written notice.

3. **Abandonment**

The Franchisee ceases to actively operate the Franchise Business or abandons the franchise (for instance, stops providing services to customers for an extended period without the Franchisor's consent, excluding temporary cessation due to health or personal emergencies that have been communicated to the Franchisor).

4. **Insolvency or Conviction**

The Franchisee is declared bankrupt, enters into liquidation or administration, or makes any arrangement with creditors; or the Franchisee (if an individual) is convicted of an offense or conduct that, in the reasonable opinion of the Franchisor, materially harms the reputation of My Tidy Garden.

5. **Misconduct**

The Franchisee engages in fraud, gross negligence, or willful misconduct in relation to the operation of the Franchise Business.

6. **Repeated Minor Breaches**

The Franchisee commits repeated breaches of this Agreement or the Operating Standards, which may individually be minor but collectively undermine the franchise system or the Franchisor's confidence in the Franchisee's ability to operate the business properly. The Franchisor will have given prior written warnings in such a case, and if the behavior continues, it shall constitute Cause for termination.

If any of the above Causes occur, the Franchisor may terminate this Agreement by sending a written termination notice to the Franchisee. If a cure period is applicable (as noted above), the Franchisor's notice will take effect (terminate the Agreement) immediately upon the lapse of that cure period if the Franchisee has not remedied the default in time. If no cure period applies (or it has been provided in a prior notice already), termination may be effective immediately or as of a date stated in the notice.

9.2 Termination by Franchisee

The Franchisee may terminate this Agreement prior to the end of the Term by giving at least [3

months'] written notice to the Franchisor of the Franchisee's intention to terminate. The Franchisee understands that if they terminate early without Cause attributable to the Franchisor, the Initial Fee (if any) will not be refunded and the Franchisee will remain liable for the Monthly Fees up to the effective date of termination.

Alternatively, the Franchisee has the right to terminate this Agreement if the Franchisor commits a material breach of its obligations under Section 3 (for example, failing to provide the initial training or the promised support in a significant way) and, after written notice from the Franchisee specifying the issue, the Franchisor fails to cure such breach within a reasonable period. In such a case where the Franchisor's breach is significant and uncured, the Franchisee would not be obligated to continue paying Monthly Fees from the effective termination date (except for any fees accrued up to that date).

9.3 Mutual Termination

The Franchisor and Franchisee may at any time agree in writing to terminate this Agreement by mutual consent. The terms of such a mutual termination should be documented and agreed, including any arrangements for ongoing customer service or transfer of obligations to another franchisee, and any settlement of fees.

9.4 Consequences of Termination or Expiration

Upon termination or expiration of this Agreement for any reason:

1. Cessation of Brand Use

The Franchisee must immediately cease all use of the My Tidy Garden trademarks, brand name, and System. The Franchisee shall not represent themselves as being associated with My Tidy Garden. This includes removing all My Tidy Garden signage, logos, and branding from vehicles, uniforms, advertising materials, online listings (including social media and any website or Google business profile used for the franchise), and anywhere else it appears. If phone numbers or web domains were provided by the Franchisor for the Franchisee's use, the Franchisee will cooperate in transferring those back to the Franchisor or a new franchisee as directed.

2. Return of Proprietary Materials

The Franchisee shall promptly return to the Franchisor all materials that were provided by the Franchisor which are proprietary to the System, including any copies of the Operations Manual, training materials, customer lists/leads, and any other confidential documents. If instructed by the Franchisor, the Franchisee shall destroy confidential materials and provide confirmation of their destruction.

3. Settlement of Financial Obligations

All amounts owed by either party to the other shall become immediately due and payable. This includes any outstanding Monthly Fees or other charges owed by the Franchisee, and any unpaid reimbursements or other amounts owed by the Franchisor (though typically, franchise agreements involve payments from Franchisee to Franchisor

rather than vice versa).

4. Customer and Job Transition

The Franchisee shall, at the Franchisor's request, provide the Franchisor with a list of all customers serviced in the last 6 months of the franchise (to ensure continuity of service). The Franchisee will also cooperate in an orderly transition of ongoing jobs or service contracts to either the Franchisor or a replacement franchisee, so that customers experience minimal disruption. Any such transfer of customer agreements will be handled fairly; for example, if a customer has prepaid for services, those funds (for services not yet rendered) should be forwarded to the Franchisor or new operator or refunded to the customer, as appropriate.

5. No Interference

The Franchisee agrees not to do anything that would intentionally interfere with the Franchisor's or a new franchisee's efforts to service the customers in the Territory after termination. This means no disparaging the brand to customers or trying to lock them into alternative contracts, etc. Professionalism is expected during the wind-down.

6. Survival of Certain Provisions

Any provisions of this Agreement which by their nature or terms are meant to survive termination (including, but not limited to, post-term non-competition and non-solicitation covenants, confidentiality obligations, and indemnities) shall remain in effect according to their terms.

9.5 No Compensation for Goodwill

The Franchisee acknowledges that no compensation for goodwill, lost profits, or any termination fees are payable by the Franchisor upon the expiration or termination of this Agreement in accordance with its terms. The Franchisee is entering into this Agreement with the understanding that the rights granted are for the Term only (and any agreed renewal) and that they will not be compensated for the loss of the franchise business upon its termination or non-renewal, except as may be required under any applicable franchise protection laws (if any).

9.6 Survival

Any provisions of this Agreement which by their nature or express terms are meant to survive termination or expiration (including but not limited to payment obligations, Sections 8 (Restrictive Covenants), 10 (Intellectual Property), 11 (Dispute Resolution), and 12 (General Provisions)) shall survive and remain in effect notwithstanding termination or expiry of this Agreement.

9.7 Rights on Termination

The termination rights herein are in addition to any other rights or remedies the Franchisor may have under law or equity. If this Agreement is terminated by the Franchisor for cause, the Franchisor reserves the right to seek damages, injunctive relief, or other remedies against the Franchisee to the extent permitted by law, for any losses or harm caused by the Franchisee's

breaches or actions leading to termination. Likewise, if the Agreement is terminated by the Franchisee for the Franchisor's breach, the Franchisee retains the right to seek appropriate remedies for the Franchisor's failure to perform.

10. Dispute Resolution & Governing Law

10.1 Good Faith Negotiation

In the event of any dispute, claim, or disagreement arising out of or relating to this Agreement or the operation of the Franchise Business (a "Dispute"), the parties shall first attempt to resolve the matter through good-faith negotiations between themselves. Either Party may initiate this process by giving written notice to the other Party describing the nature of the Dispute. The Parties shall meet (in person or via video/teleconference) within 14 days of such notice to discuss the issue and seek an amicable resolution.

10.2 Mediation

If the Dispute cannot be resolved through direct negotiation within a reasonable time (not to exceed 30 days from the initial notice of Dispute, unless extended by mutual agreement), either Party may refer the Dispute to mediation by giving written notice to the other Party. The mediation shall be conducted by a single mediator mutually agreed by the Parties. If no agreement can be reached on the choice of mediator, either Party may request a recognised mediation body (such as the Centre for Effective Dispute Resolution (CEDR) or similar) to appoint a mediator.

The mediation shall be conducted in person at a location convenient to both Parties, or virtually, following the procedures of the appointed mediator or mediation service. Each Party shall bear its own legal costs and share the mediation fees equally. All communications during mediation shall be confidential and without prejudice to the Parties' legal rights and positions.

10.3 Escalation to Arbitration or Court

- **Arbitration**

If the Dispute is not resolved through mediation, either Party may refer the matter to binding arbitration. Arbitration shall be conducted in accordance with the Arbitration Act 1996, under the administration of a recognised arbitration body (such as the London Court of International Arbitration or similar), unless the Parties agree otherwise. The arbitration shall be carried out by a single arbitrator, seated in England (e.g., London), and conducted in English. The arbitrator's award shall be final and binding, and judgment may be entered in any court of competent jurisdiction. Arbitration is the preferred final method of dispute resolution under this Agreement, unless bypassed by mutual consent or by default.

- **Court Proceedings**

If neither Party initiates arbitration within 60 days of mediation concluding without resolution, or if both Parties agree to bypass arbitration, either Party may commence court proceedings. For this purpose, the Parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction over any Dispute that is not resolved by negotiation, mediation, or arbitration.

The Parties waive any objection to the jurisdiction of the English courts on grounds of forum non conveniens or otherwise. However, the Franchisor may, at its discretion, bring legal action in the courts where the Franchisee operates their business, if necessary to protect Intellectual Property rights or enforce post-termination covenants.

10.4 Continued Performance

Unless the Dispute renders continued performance impossible or impractical, both Parties shall continue performing their obligations under this Agreement while the dispute resolution process is ongoing.

10.5 Confidentiality of Dispute Resolution

All discussions, documents, and communications related to negotiation, mediation, arbitration, or court proceedings under this Section shall remain confidential between the Parties, unless disclosure is required by law or necessary to enforce a settlement or judgment.

11. Liability & Indemnity

11.1 Independent Contractor Acknowledgment

The Franchisee operates the Franchise Business as an independent contractor. Nothing in this Agreement is intended to create (and shall not be construed as creating) a partnership, joint venture, agency, or employment relationship between the Franchisor and the Franchisee. The Franchisee is solely responsible for all liabilities, costs, and expenses of the Franchise Business and for the acts and omissions of the Franchisee's employees or subcontractors. The Franchisee shall not have any authority to bind or act on behalf of the Franchisor in any way, and must not hold themselves out as having such authority.

11.2 Franchisee's Indemnity

The Franchisee hereby agrees to indemnify and hold harmless the Franchisor and its affiliates, and their respective officers, directors, and employees (the "Indemnified Parties"), from and against any and all losses, damages, liabilities, costs, and expenses (including reasonable legal fees) incurred by the Indemnified Parties as a result of or in connection with:

- Any breach by the Franchisee of this Agreement or the standards and procedures of the System;

- The operation of the Franchise Business by the Franchisee (including any claims by customers or third parties for personal injury, property damage, or other losses arising from the Franchisee's services or actions); or
- Any infringement by the Franchisee of a third party's intellectual property rights due to unauthorized actions of the Franchisee.

This indemnity shall survive the termination of this Agreement.

11.3 Limitation of Franchisor's Liability

The Franchisor will not be liable to the Franchisee for any indirect, special, or consequential losses or damages, or for any loss of profit, loss of revenue, or loss of business opportunity, arising out of or relating to this Agreement or the franchise relationship, except where such loss is caused by the Franchisor's fraud or willful misconduct.

In any event, to the fullest extent permitted by law, the total aggregate liability of the Franchisor to the Franchisee for any and all claims arising (whether in contract, tort, or otherwise) in any calendar year shall be limited to the amount of franchise fees (Monthly Fees) paid by the Franchisee to the Franchisor in that year.

Nothing in this Agreement shall limit or exclude the liability of either party for death or personal injury caused by that party's negligence, or for any other liability which cannot be lawfully limited or excluded.

12. General Provisions

12.1 Notices

Any notice required or permitted to be given under this Agreement shall be in writing and shall be deemed properly given when delivered personally (with signed proof of receipt), or 2 business days after being sent by recorded delivery post (or international courier) to the address of the other Party as specified above (or to any updated address that a Party has notified in writing), or when sent by email to the designated email address of the other Party (provided that a confirmation copy is also sent by post). Notices to the Franchisor shall be addressed to [Company Address or designated contact person/email]; notices to the Franchisee shall be addressed to [Franchisee Address or designated contact person/email].

12.2 Entire Agreement

This Agreement, together with any schedules or appendices attached (if any), constitutes the entire agreement between the Parties with respect to the subject matter hereof, and supersedes any and all prior or contemporaneous understandings, agreements, or representations, whether oral or written, concerning the subject matter of this Agreement. The Franchisee acknowledges that they are entering into this Agreement without reliance on any representation made by the

Franchisor or any of its representatives that is not expressly set forth in this Agreement. Nothing in this clause limits liability for fraudulent misrepresentation.

12.3 Amendments

No amendment, variation, or modification of this Agreement shall be valid or binding unless it is made in writing and signed by duly authorised representatives of both the Franchisor and the Franchisee. This includes any changes to the Territory, the Term, or the Fees (aside from adjustments as provided within this Agreement).

12.4 Severability

If any provision of this Agreement is held to be invalid or unenforceable by a court or other tribunal of competent jurisdiction, that provision shall (so far as invalid or unenforceable) be given no effect and shall be deemed not to be included in this Agreement, without invalidating any of the remaining provisions. If the scope of any provision is found to be too broad to be enforceable, the Parties agree that the court or tribunal may modify that provision to the minimum extent required to render it enforceable (as per Section 8.7 for restrictive covenants), and the provision shall be enforced as modified.

12.5 Waiver

No failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or remedy preclude any further or future exercise of that or any other right, power, or remedy. Any waiver granted by a Party must be in writing and signed to be effective, and shall apply only to the specific instance expressly stated.

12.6 Independent Franchisees

The Franchisee acknowledges that other franchisees may operate My Tidy Garden franchises under agreements similar to this one. The Franchisee's rights under this Agreement extend only to their own Franchise Business and Territory, and nothing in this Agreement gives the Franchisee any rights regarding the operation or territory of any other franchisee. Likewise, the Franchisor's obligations and any performance metrics or promises (e.g. lead generation) are specific to this Franchisee and Territory, and the Franchisor's dealings with other franchisees do not constitute a breach of this Agreement as long as the Franchisor upholds the terms herein with the Franchisee.

12.7 Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of England and Wales (or the laws of the jurisdiction in which the Franchisee's Territory is located, if different and agreed in writing). The Parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter, provided that the Franchisor may at its option bring proceedings against the Franchisee in the courts of the jurisdiction where the Franchisee is operating the Franchise Business if different, for matters pertaining to enforcement of post-termination restrictions or protection of intellectual property. The Parties will

attempt in good faith to resolve any disputes through negotiation or mediation before resorting to legal proceedings.

12.8 Assignment

The Franchisee may not assign or transfer this Agreement (including a sale of the franchise) without the Franchisor's prior written consent. The Franchisor may assign its rights or obligations to a successor company or affiliate, upon notice to the Franchisee.

12.9 Third-Party Rights

No person other than the Parties (and permitted assignees) has any right to enforce any term of this Agreement under the Contracts (Rights of Third Parties) Act 1999.

12.10 Independent Advice and No Financial Guarantees

The Franchisee acknowledges being advised to seek independent legal and financial advice prior to signing. The Franchisee confirms no financial guarantees or predictions of specific profits have been made by the Franchisor, beyond what is explicitly stated in writing (if anything).

12.11 Counterparts

This Agreement may be executed in counterparts, each of which is considered an original, and all together constitute one agreement.

13. Force Majeure

13.1 Definition and Scope

Neither Party shall be liable for any delay or failure to perform its obligations under this Agreement (other than payment obligations for services already rendered) where such delay or failure is caused by an event of Force Majeure, meaning any act, occurrence, or circumstance reasonably beyond the Party's control and not due to its own fault or negligence. Such events include but are not limited to natural disasters, severe weather, acts of war or terrorism, pandemics, governmental restrictions or lockdowns, embargoes, labor strikes (excluding strikes of a Party's own workforce), civil unrest, or any law or action taken by a government or public authority that renders performance impossible or impracticable.

13.2 Notice and Mitigation

A Party claiming relief under this clause shall promptly notify the other Party in writing, specifying the nature of the Force Majeure event, its expected duration, and the obligations affected. The affected Party shall use all reasonable efforts to mitigate or limit the impact of the Force Majeure event on its performance and to resume performance as soon as reasonably possible.

13.3 Temporary Relief of Obligations

During any period of Force Majeure, the affected Party's obligations (except for accrued

payment obligations) shall be temporarily suspended to the extent they cannot be performed due to the Force Majeure event. If the Franchisee's ability to operate is substantially impaired, the Parties agree to discuss in good faith any temporary adjustment to the Franchise Fees or other financial obligations during the Force Majeure period, provided the Franchisee first supplies reasonable evidence of the event's impact on their business.

13.4 Extended Force Majeure

If a Force Majeure event continues for more than ninety (90) consecutive days, either Party may request renegotiation of relevant terms of this Agreement. If, after good faith discussions, the Parties cannot reach agreement, then either Party may give written notice terminating this Agreement with immediate effect (or on a date specified in the notice). Such termination shall not constitute a breach and each Party shall bear its own losses or damages arising out of such termination.

13.5 No Excuse for Failure to Pay for Past Services

Nothing in this clause excuses either Party from making any payments that became due prior to the commencement of the Force Majeure event (e.g. unpaid Fees for services already rendered), nor does it excuse any breach that occurred before the Force Majeure event arose.

14. Signatures

IN WITNESS WHEREOF, the Parties have caused this Franchise Agreement to be executed by their duly authorized representatives on the dates indicated below.

Franchisor:

Signed: _____

Name: _____

Date: _____

Franchisee:

Signed: _____

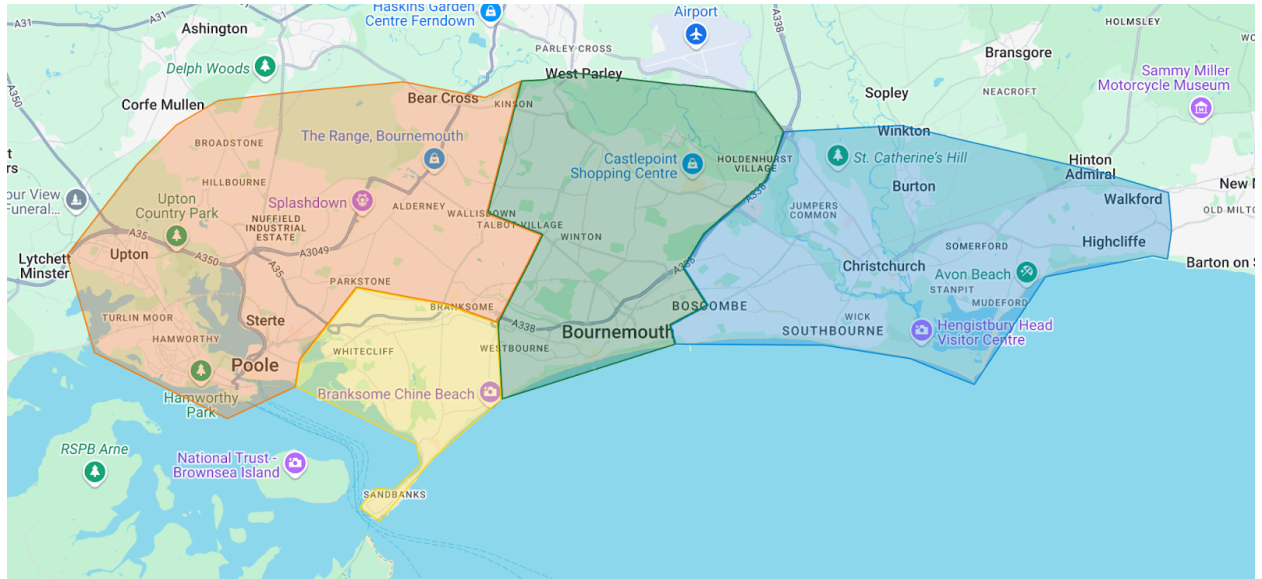
Name: _____

Date: _____

SCHEDULE 1: TERRITORY

1. Geographical Definition: The exclusive Territory assigned to the Franchisee under this Agreement consists of the following areas (collectively, the “Territory”):

- “[BH1](#), [BH2](#), [BH3](#), [BH4](#), [BH8](#), [BH9](#), [BH10](#)”
- “Bournemouth”
- “Area highlighted green on My Tidy Garden Territory Locations Map displayed below”



2. Exclusions The following specific location(s) or account(s) are excluded from the Franchisee’s exclusive territory rights, if any:

- The Franchisor or other existing Franchisee’s wish to retain “customer ownership” of any pre-existing customers, located within the new Franchisee’s territory.

3. Future Adjustments The Parties acknowledge that Section 1.2.4 of the Franchise Agreement allows adjustments to the Territory upon mutual agreement. Should any expansion, subdivision, or realignment occur, a revised Schedule 1 or an Addendum will be prepared and signed to reflect the change.

Acknowledgment The following signatures confirm that this Schedule 1 is part of the Franchise Agreement, setting forth the Territory granted to the Franchisee:

Franchisor:

Signed: _____

Date: _____

Signed: _____

Date: _____

1. Purpose

2. Customer List

[illegible]

3. Acknowledgment of Branding and Standards

- Although these customers predate the Franchise Agreement, the Franchisee agrees to service them fully under the My Tidy Garden brand, adhering to the same quality benchmarks, invoicing procedures, and brand materials used for all franchise-acquired customers.
- The Franchisor may include these Existing Customers in marketing campaigns or communications, provided such actions comply with applicable data protection laws.
- The Franchisee will keep this schedule current. If additional pre-existing customers are discovered, or if any are no longer serviced, the Franchisee shall update this schedule accordingly.

4. Confirmation

By signing below, the Franchisee attests to the accuracy of this list as of the Commencement Date and agrees that these Existing Customers will be treated as outlined above. Both Parties confirm that Schedule 2 forms part of the Franchise Agreement.

Franchisor:

Signed: _____

Name: _____

Date: _____

Franchisee:

Signed: _____

Name: _____

Date: _____

SCHEDULE 3

Personal Letter from Franchisor to Adam Bruce

Dear Adam,

I am writing to you personally as the owner of My Tidy Garden, to welcome you as our very first franchisee. From our initial, unofficial collaboration over the past few months, I have truly enjoyed working with you and am excited to formalize our partnership under the My Tidy Garden Bournemouth franchise.

As an expression of my appreciation, I confirm that I have **waived the initial franchise fee** for you. Additionally, over the past three months, you have not been required to pay any franchise fees while we worked on an informal basis. I hope this early support has proven valuable and has helped you establish a foothold in the market.

By signing this Agreement, you become the **official owner of My Tidy Garden Bournemouth**, with **exclusive franchise rights** to the Bournemouth area in accordance with the terms of the Agreement. As the first My Tidy Garden franchisee, you have a unique opportunity during this early stage: you will generally have **priority access to all areas that we cover** (with the exception of BH13 and BH14, which I retain priority rights over). Although I hold these two postcodes, I am not actively seeking to take on additional work at this time. Consequently, you will often receive any overflow opportunities from these areas as well.

In the future, if additional franchisees join My Tidy Garden, I want to reassure you that **you may continue to serve any existing customers in their territories**. Moreover, if it ever makes good business sense, you will have the option to **sell or transfer** groups of these customers to new franchisees, consistent with the provisions in the Franchise Agreement.

I believe that this is an excellent moment for you to join My Tidy Garden. The foundations we have laid so far, together with our shared vision, mean there is enormous potential for growth and success. I look forward to supporting you every step of the way—providing guidance, resources, and encouragement as you develop your franchise.

Thank you again for your trust, commitment, and hard work. I am confident that your drive and dedication will make My Tidy Garden Bournemouth a thriving business, and I cannot wait to see all that we will accomplish together.

Warm regards,

Michael Seatory
My Local Pro LTD